

Khalid v. State of Uttar Pradesh

High Court of Judicature at Allahabad · Division Bench · 3 January 2022 · WRIT - C No. 32659 of 2021 · **Writ disposed; petitioner relegated to a clause 6.5 representation against the impugned demand, with a six-week stay of coercive recovery.**

HEADNOTE

On a challenge to a demand of Rs.5,24,756, the Allahabad High Court, with consent and without expressing any opinion on merits, disposed of the writ by granting liberty to file a representation/objection under para 6.5 of the U.P. Electricity Supply Code, 2005 within three weeks. The licensee was to decide it expeditiously, preferably within three weeks after hearing. Coercive action on the recovery notice was stayed for six weeks or until the representation was decided, whichever was earlier.

FACTUAL SUMMARY

Khalid challenged in the Allahabad High Court an electricity demand of Rs.5,24,756 and the associated recovery notice. By consent the petition was heard finally without a counter affidavit, through video conferencing. Counsel for the second respondent stated on instructions that the petitioner could represent against the demand under para 6.5 of the U.P. Electricity Supply Code, 2005, and that a time-bound representation would be decided expeditiously in accordance with law. The petitioner's counsel agreed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

representation against disputed demand

HOLDING

Without expressing any opinion on merits, a writ challenging an electricity demand of Rs.5,24,756 was disposed of with liberty to the consumer to make a representation/objection under para 6.5 of the U.P. Electricity Supply Code, 2005 before the licensee within three weeks; the licensee was to decide it in accordance with law, expeditiously, preferably within three weeks after reasonable opportunity of hearing. Coercive action on the impugned recovery notice/demand was stayed for six weeks or until the representation was decided, whichever was earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Court disposed of the writ, by consent, by sending the consumer to a para 6.5 representation against the impugned demand rather than examining the bill on the writ side. ¶ 1

6.5-representation-as-appropriate-remedy Both sides accepted that a representation under para 6.5 was the appropriate course against the demand of Rs.5,24,756, and the Court granted liberty on that footing. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed demand was left to be decided on a para 6.5 objection in accordance with law, with a short stay of coercive recovery pending that decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE IMPUGNED DEMAND OF RS.5,24,756

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1